mention any further statement from Washington. As their statement also includes implementation, I would propose not make any mention thereof my statement here but leave it to Dept make any statement this regard it would consider necessary or desirable. In general believe we should, if possible, avoid any statement on implementation at this time.

[Johnson]

explaining the inadequacies of the Chinese draft and the logic of the U.S. draft. (*Ibid.*, 611.93/5-2656) On June 12, Wang Ping-nan issued the expected statement, which quoted from the draft announcements of April 19 and May 11, and reiterated the Chinese call for a Foreign Ministers meeting within 2 months. The Department responded the same day with a press release which explained and justified the U.S. draft of April 19. The Chinese statement is summarized in the *New York Times*, June 13, 1956; the text of the statement released by the Department is printed in Department of State *Bulletin*, June 25, 1956, pp. 1070–1071.

186. Memorandum for the Files, by the Deputy Assistant Secretary of State for Far Eastern Economic Affairs (Jones) [1]

[Washington,] June 10, 1956.

SUBJECT

Paracel Islands

The duty officer telephoned me at home about 3:15 p.m., today (Sunday) regarding niact cable from Saigon (4798 [2]) on the above subject. I immediately came down to the office and, through Mr. McAuliffe of S/S, contacted Mr. Hoover, who asked me to come up to his house immediately. Mr. McAuliffe, Paul Kattenburg of SEA and I gave Mr. Hoover as much information as we had on the subject, discussed alternative courses of action and raised questions which needed answering. Mr. Hoover informed us that Admiral Burke had already ordered a plane reconnaissance of the area.

[1] Source: Department of State, Central Files, 790.022/6–1056. Top Secret.

[2] In telegram 4798 from Saigon, June 10, the Embassy reported that the Foreign Ministry had passed along the following message received from a Vietnamese Meteorological Station on Pattle Island in the Paracels: "Chinese Communist troops have disembarked on Robert Island. The lives of all persons in danger. Request immediate evacuation." The Vietnamese Foreign Minister indicated that President Diem had instructed him to ascertain whether in case of necessity, this Chinese "aggression" would result in action under the SEATO Treaty. (*Ibid.*)

We then, at Mr. Hoover's request, joined him in a conference with the Secretary. Mr. Phleger and Mr. MacArthur were also present at the meeting at the Secretary's home.

After the situation had been outlined to him, the Secretary stated that this was a matter of greatest importance in which the United States should take prompt and effective action. In his opinion this was a probing operation by the Communists and prompt action here should be highly salutary in connection with the off-shore islands of Quemoy and Matsu. He further pointed out that the United States Government has a stake here which other members of SEATO do not have. He suggested that we might move under the SEATO treaty after talking with Congressional leaders.

Complications arising from the fact that the question of who had sovereignty over the Islands had not been settled were discussed. The Islands are claimed by the Viet Nam Government, the Government of the Republic of China on Taiwan, and the Chinese Communists. The Viet Nam claim comes down through the French but is also based on historical claims. The French have indicated their willingness to relinquish their claim in favor of Viet Nam but have taken no action legally to transfer sovereignty. The French claim itself is somewhat tenuous, resting on the assertion that sovereignty was transferred from the Chinese in 1816. Unfortunately, the French have no documentary evidence of this transfer.

The Vietnamese, however, claim that these Islands have long been Vietnamese territory, pointing out historical references as early as 1701 to these Islands as belonging to the Court of Annam. The Chinese claim is that these Islands have from time immemorial been under the jurisdiction of the Chinese Empire and have been used by Chinese fisherman.

The French have a meteorological station on Pattle Island which was established shortly after World War II and which presently is manned by six French plus Vietnamese staff.

In December 1955 or January 1956, the Communists occupied Woody Island in the Paracels, apparently for the purpose of carrying on guano operations. Whether any military installations are on the island is not known.

During the discussion, the Secretary pointed out that we might consider acting under the Japanese Treaty since the U.S. has residual responsibility over all former Japanese territories. He also expressed the tentative view that we could act unilaterally under Article VIII of the SEATO treaty. [3] Various other possibilities were discussed, in-

[3] Article VIII of the Southeast Asia Collective Defense Treaty, signed at Manila on September 8, 1954, defined the "treaty area" covered by the agreement as "the general area of Southeast Asia, including also the entire territories of the Asian Parties,

Continued

cluding the suggestion that we might get the Philippines to act jointly with us. The Secretary rejected the suggestion of consultation with other SEATO powers on the ground that quick action was needed and the only way to get it was for the United States to act and take the responsibility for acting.

He agreed, however, that nothing could be done until the facts has been ascertained from the reconnaissance aircraft from the Seventh Fleet and that meanwhile various possibilities for prompt and effective action should be explored.

Following the meeting, Mr. Hoover instructed me to draft a cable to Saigon asking them to keep us informed on an urgent basis and advising the Embassy for its information only that the U.S. was contemplating intervention to remove the Communists from the Islands. This was done. (Deptel 4011 to Saigon June 10 [4])

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and the general area of the Southwest Pacific not including the Pacific area north of 21 degrees 30 minutes north latitude". For full text of the treaty, see 6 UST 81.

[4] Telegram 4011 to Saigon, June 10, informed the Embassy that, although the issue was confused by conflicting claims to sovereignty over the islands, serious consideration was being given "highest levels US Government to possibility military operations clean-out Communists from area including Woody as well as Robert and Pattle if latter attacked". Further determinations were dependent upon the receipt of more definite information from naval-air reconnaissance authorized to take place early on the morning of June 11. (Department of State, Central Files, 790.022/6–1056) In telegram 4021 to Saigon, June 11, also sent to Taipei as telegram 766, the Department indicated that two alternative courses of action were being considered in Washington to effect the evacuation of the Chinese Communists from the Paracels:

"1. Available US forces in area would take direct unilateral action to force Chicom withdrawal after giving suitable warning period. Legal opinion not yet firm whether such action possible under Article 8 of SEATO Treaty or under Japanese Peace Treaty. In either event US would notify Vietnam and Chinats such action would not prejudice ultimate determination of sovereignty as between them.

"2. Endeavor obtain agreement by Chinats and Vietnam for joint action by their forces in which US forces would supply backstopping where necessary. In event such prior agreement reached assume no legal questions would arise."

The Embassies were asked to comment on the alternatives, bearing in mind the probable attitude of their respective governments and the governments of other Asian countries, the effect of the use of U.S. rather than Asian troops, and the possibility of resolving the sovereignty question by a compromise settlement between the Republic of China and the Republic of Vietnam. (*Ibid.*, 293.9322/6–1156)